

Mukund Tripathi v. State of U.P. (recovery citation; disputed electricity bill)

High Court of Judicature at Allahabad · Division Bench · 12 September 2019 · Writ-C No. 27253 of 2019 · **Writ disposed of with liberty to pursue clause 6.5 or the pending Permanent Lok Adalat complaint; recovery citation not interfered with.**

HEADNOTE

A consumer disputing the correctness of an electricity bill, and facing a recovery citation, is to invoke clause 6.5 of the Supply Code before the Executive Engineer or await a pending Permanent Lok Adalat complaint on the same bill. Absent a stay of realisation, issuing recovery is not unjust or illegal, and the High Court will not quash the citation.

FACTUAL SUMMARY

Mukund Tripathi challenged a recovery citation dated 21 May 2019 issued at the instance of the electricity licensee, under which Rs 2,23,209 was sought to be realised as dues up to April 2019. He alleged that the April 2019 bill showing those arrears was illegal and incorrect. He had already filed Complaint No. 17 of 2019 before the Permanent Lok Adalat, which remained pending, when the recovery issued. No stay of realisation of the billed amount was in force.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

Correctness of an electricity bill can be rectified by the Executive Engineer if the consumer invokes clause 6.5 of the U.P. Electricity Supply Code, 2003 (the 2005 Code). Where the same bill is already under challenge before the Permanent Lok Adalat, the consumer should await that decision. Absent a stay of realisation, the licensee does not act unjustly or illegally in issuing a recovery citation. The Court declined to intervene and disposed of the writ with liberty to pursue the Lok Adalat or a clause 6.5 application. ¶ 1

FLAG Order cites 'U.P. Electricity Supply Code, 2003'; clause 6.5 is the 2005 Code billing-objection provision.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Writ against a recovery citation on a disputed bill was not decided on the bill's merits; the consumer was sent to the Executive Engineer under clause 6.5, with a pending Permanent Lok Adalat complaint treated as an additional forum, and recovery left undisturbed because realisation had not been stayed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE APRIL 2019 ELECTRICITY BILL AND THE SUM OF RS 2,23,209 WERE IN FACT ILLEGAL OR INCORRECT

Writ disposed without examining the bill; petitioner left to clause 6.5 or the pending Permanent Lok Adalat complaint. ¶ 1